

City of Hollywood

*Hollywood City Hall
2600 Hollywood Blvd
Hollywood, FL 33020
<http://www.hollywoodfl.org>*



Meeting Minutes

Wednesday, August 26, 2015

1:00 PM

Commission Chambers Room 219

Regular City Commission Meeting

CITY COMMISSION

Peter Bober, Mayor

Kevin Biederman, Vice Mayor - District 5

Patricia Asseff, Commissioner - District 1

Peter Hernandez, Commissioner - District 2

Traci Callari, Commissioner - District 3

Richard Blattner, Commissioner - District 4

Linda Sherwood, Commissioner - District 6

Dr. Wazir Ishmael, City Manager

Jeffrey P. Sheffel, City Attorney

Patricia A. Cerny, City Clerk

The Regular City Commission Meeting of the City of Hollywood, Florida, was called to order by Mayor Bober on Wednesday, August 26, 2015 at 1:05 PM in the City Commission Room, Room 219, Joseph W. Watson Circle, Hollywood, Florida.

1. **Moment of Silence**
2. **Pledge of Allegiance**
3. **Recognition of Veterans, Active Service Personnel & Their Families**
4. **Roll Call**

Present: Commissioner Patricia Asseff, Commissioner Peter Hernandez, Commissioner Traci Callari, Commissioner Richard Blattner, Vice Mayor Kevin D. Biederman, Commissioner Linda Sherwood and Mayor Peter Bober

CONSENT AGENDA

Approval of the Consent Agenda

ACTION: A motion was made by Commissioner Asseff, seconded by Commissioner Sherwood, to adopt the Consent Agenda. The motion passed unanimously (7-0).

5. [R-2015-232](#) A Resolution Of The City Commission Of The City Of Hollywood, Florida, Approving The Regular City Commission Meeting Minutes Of April 1, 2015.
ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).
6. [R-2015-233](#) A Resolution Of The City Commission Of The City Of Hollywood, Florida, Approving The Regular City Commission Meeting Minutes Of April 15, 2015.
ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).
7. [R-2015-234](#) A Resolution Of The City Commission Of The City Of Hollywood, Florida, Approving The Joint / Special City Commission / Community

Redevelopment Agency Board Meeting Minutes Of April 15, 2015.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

8. [R-2015-235](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Approving The City Of Hollywood Legislative Agenda For The Upcoming 2016 Legislative Session.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

9. [R-2015-236](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Approving The Attached State Housing Initiatives Partnership Program Annual Report (SHIP-AR) For Fiscal Years 2012/2013, 2013/2014 And 2014/2015 Pursuant To The State Housing Initiatives Partnership Program Act; Authorizing The Appropriate City Officials To Submit The Attached SHIP-AR To The Florida Housing Finance Corporation; Authorizing The Appropriate City Officials To Execute Any And All Required Documents For The SHIP-AR; And Providing For An Effective Date.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

10. [R-2015-237](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Recommending Project Wilson Be Approved As A Qualified Target Industry Business Pursuant To S.288.106, Florida Statutes; Providing For Local Financial Support; Providing For An Effective Date.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

12. [R-2015-239](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Approving The Allocation Of Community Development Block Grants Funds To Various Eligible Agencies And Authorizing The Appropriate City Officials To Execute The Attached Agreements With Each Eligible Agency For A Total Allocation Of Community Development Block Grant Funds In The Amount Of \$75,000.00. (No Change From The City Commission Workshop With The Community Development Advisory Board.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

13. [R-2015-240](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Amending The Adopted Fiscal Year 2015 Operating Budget (R-2014-282); Authorizing The Continuation Of Certain Previously Authorized And Appropriated Funds In Certain Identified Accounts Of The Adopted Fiscal Year 2014 Operating Budget, As Amended, Which Balances Remained Unencumbered At The End Of The 2014 Fiscal Year In The Police Grants Fund, Fund 13, Into Identified Fiscal Year 2015 Accounts in Fund 13 In The Amounts As Detailed In The Attached Exhibit 1, And Providing An Effective Date.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

14. [R-2015-241](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Issue The Attached Blanket Purchase Order Between Flamingo Oil Company And The City Of Hollywood, For The Supply And Delivery Of Automotive Oils, Lubricants And Greases For An Estimated Annual Expenditure Of \$55,000.00.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

17. [R-2015-244](#)

A Resolution Of The City Commission Of The City of Hollywood, Florida, Approving General Fund Agency Grants To Certain Non-Profit Organizations Providing Services To City Of Hollywood Residents As Listed in Exhibit "A;" Authorizing The Appropriate City Officials To Execute The Attached Miscellaneous Appropriations Agreement With Each Organization For A Total Allocation Of Funding Not To Exceed \$177,000.00; And Further Authorizing The Department Of Financial Services To Create Accounts To Appropriate And Disburse Grant Funding.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

18. [R-2015-245](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Approving The Final Of Three Additional One Year Extensions Of The Sublease Agreement Between JCD Golf Of Florida, Inc., And Nikki's On The Green, Inc., For The Operation Of Food And Beverage

Services At Orangebrook Golf And Country Club.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

19. [R-2015-246](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Renew The Attached Blanket Purchase Order Between Polydyne, Inc And The City Of Hollywood For The Purchase And Supply Of Dry Polymer For An Estimated Annual Expenditure Of \$189,750.00.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

20. [R-2015-247](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Execute The Attached Agreement And Issue The Attached Blanket Purchase Order Between Madsen Barr Corporation And The City Of Hollywood For Public Utilities Emergency Response Services For An Estimated Annual Expenditure Of \$500,000.00 To Be Used In The Case Of An Emergency.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

21. [R-2015-248](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Approving And Authorizing The Appropriate City Officials To Expand The Existing Retrofit Toilet Rebate Program To Include Commercial Properties, In An Estimated Amount Of \$200,000.00.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

22. [R-2015-249](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Approving And Authorizing The Issuance Of The Attached Amended Blanket Purchase Order For Utility Locator Services Between The City Of Hollywood And Craig A. Smith & Associates Increasing Estimated Annual Expenditure For Said Services To An Estimated Annual Amount Of \$313,000.00 For The Remainder Of The Current Contract Year And An Estimated Amount Of \$318,000.00 For The Final Contract year (Ending December 17, 2016).

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

23. [R-2015-250](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Negotiate And Execute A Three (3) Year Agreement Between The Highest Ranked Firm And The City Of Hollywood To Provide Rate Consulting, Large User Group True-Up Financial And Technical Services.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

24. [R-2015-251](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Approving And Authorizing The Issuance Of The Attached Amended Blanket Purchase Order Between Ramar Enterprises Of Broward, Inc. D/B/A L&L Distributors And The City Of Hollywood To Increase The Estimated Annual Expenditure From \$21,000.00 To \$65,000.00 For The Supply And Delivery Of Various Truck Parts, Accessories And Supplies For Both The Fire Rescue & Beach Safety Department And The Department Of Public Works.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

25. [R-2015-252](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Execute The Attached License Agreement Between The National Ben Gamla Charter School Foundation And The City Of Hollywood, For The Licensee To Maintain Bus Lane Improvements In The Public Right Of Way Associated With The New School Development Located At 2650 Van Buren Street.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

27. [R-2015-254](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Execute A Utility Easement Attached Hereto As Exhibit "A" And The Agreement For Public Improvements Between Value Store It Hollywood, LLC And The City Of Hollywood Attached Hereto As Exhibit "B, In Accommodation Of Redevelopment Efforts At 2057 Taft Street.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

28. [R-2015-255](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Execute A Series Of Consultant's Authorizations To Proceed (ATPS) Between Saltz Michelson Architects Inc And The City of Hollywood To Provide Professional Architectural And Engineering Services For The Design Of The New Fire Station No. 45 In An Amount Not To Exceed \$246,784.00; And, Further, Authorizing The Amending Of The General Capital Outlay Fund (Fund 34) Budget Of The Fiscal Year 2015 Adopted Operating Budget (R-2014-282) And Approving The Transfer Of Funding As Detailed In Exhibit 1.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

29. [R-2015-256](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Execute The Attached Contract Between Imperial Electrical, Inc., And The City Of Hollywood, To Replace The Existing Street Light Wiring On Harrison Street From 17th Avenue East To The Intracoastal Waterway, In The Amount Of \$98,000.00 (City Project No. 15-016).

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

30. [R-2015-257](#)

A Resolution of the City Commission of the City of Hollywood, Florida, Authorizing The Acceptance of The Attached Easements, For Installation of Closed Circuit Television (CCTV) and Automated License Reader (ALPR) Camera Pole Installations, in The Vicinity of the Greene Street and A1A From the North Beach Condominium Association Inc., and the Vicinity of Elm Street and A1A From Paolino, Filomena, Felice, and Marilena Parisi.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

31. [R-2015-258](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Execute The Attached Contract Between Imperial Electrical, Inc., And The City Of Hollywood, For North Surf Road Camera Poles And Associated Electrical Work, In The Amount Of \$65,000.00, With Construction To

Start In October 2015 And Be Completed In December 2015.

ACTION: This Resolution was moved by Commissioner Asseff, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously (7-0).

32. [P-2015-045](#)

A Proclamation In Recognition Of Dr. Jennifer L. Jurado Day, August 26, 2015.

Commissioner Blattner read the proclamation in recognition of Dr. Jennifer Jurado Day, August 26, 2015.

Dr. Jennifer Jurado accepted the proclamation and thanked the Commission for the recognition.

33. [P-2015-046](#)

Presentation Of Awards By Chuck Ellis, Director Of Parks, Recreation And Cultural Arts To Tangela Davis, Most Valuable Employee, Full-time And Tyrone Gordon, Most Valuable Employee Part-time For The Third Quarter Of Fiscal Year 2015.

Chuck Ellis, Director of Parks, Recreation and Cultural Arts, read the commendation which resulted in Tangela Davis being awarded as Most Valuable Employee Full-Time for the third quarter of FY 2015. Tangela Davis was unable to attend the meeting.

Chuck Ellis, Director of Parks, Recreation and Cultural Arts, read the commendation which resulted in Tyrone Gordon being awarded as Most Valuable Employee part-time for the third quarter of FY 2015.

Tyrone Gordon, accepted the award and thanked the Commission and his supervisors for the award and his co-workers for the support.

34. [P-2015-047](#)

Presentation By Joshua Kittinger, Human Resources Officer, Of Employees Hired May 1, Through July 31, 2015.

Joshua Kittinger, Human Resources Officer, introduced new employees hired May 1 through July 31, 2015.

25. [R-2015-252](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Execute The Attached License Agreement Between The National Ben Gamla Charter School Foundation And The City Of Hollywood, For The Licensee To Maintain Bus Lane Improvements In The Public Right Of Way Associated With The New School Development Located At 2650 Van Buren Street.

ACTION: Motion was made by Commissioner Hernandez, which was seconded by Commissioner Asseff, to reconsider the Resolution. On a voice vote the motion passed unanimously. (7-0)

The following individuals expressed personal opinions/concerns:

1. Patricia Antricon, 2534 Fillmore Street
2. Helen Chervin, 2470 Adams Street

Discussion ensued among members of the Commission.

Mel Standley, Assistant City Manager for Public Safety, responded to questions raised by the Commission.

ACTION: Motion was made by Commissioner Hernandez, which was seconded by Vice Mayor Biederman, to adopt the Resolution. On a voice vote the motion passed unanimously. (7-0)

35. [P-2015-039](#)

Presentation By Broward County Vice Mayor Marty Kiar, To Raise Awareness Of The Yellow Dot Program.

Vice Mayor Marty Kiar, Broward County Commission, provided a presentation to raise awareness of the Yellow Dot Program.

Discussion ensued among members of the Commission.

ACTION: Motion was made by Commissioner Hernandez, which was seconded by Commissioner Sherwood, to approve the expenditure of \$2,400.00 to participate in the Yellow Dot Program. On a voice vote the motion passed unanimously. (7-0)

36. [PO-2015-20](#)

An Ordinance Of The City Of Hollywood, Florida, Amending Chapter 38 Of The Code Of Ordinances Entitled "Purchasing" Repealing Section 38.39(B)(3)(S); Amending Section 38.40, Competitive Bidding Or Competitive Proposals Required; Amending Section 38.42, Formal Contract Procedure; Amending Section 38.43, Open Market Procedure; Amending Section 38.48, Termination, Extension, And Renewal Of Contracts.

The Mayor announced the ordinance was advertised in conformance with Florida Statutes and City Codes. The public hearing was opened; there being no one present who wished to speak, the public hearing was declared closed.

Commissioner Hernandez declared a voting conflict.

The City Clerk read the ordinance title on second and final reading.

ACTION: Motion was made by Commissioner Asseff, which was seconded by Commissioner Callari, to adopt on second and final reading the Ordinance. The motion on roll call vote carried:

Aye: Commissioner Asseff
Commissioner Callari
Commissioner Blattner
Vice Mayor Biederman
Commissioner Sherwood
Mayor Bober
Abstain: Commissioner Hernandez

11. [R-2015-238](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Repealing Resolution R-2015-122, Which Approved And Authorized The Sale To Sheryl White Of A City-Owned Vacant Commercial Lot, Parcel Id No. 514124071210, As Surplus Property, Said Lot Located 75' West Of 5401 Pembroke Road.

Discussion ensued among members of the Commission.

Dr. Wazir Ishmael, City Manager, responded to concerns raised by the Commission.

Vice Mayor Biederman left the meeting at 1:55 PM.

ACTION: Motion was made by Commissioner Blattner, which was seconded by Commissioner Asseff, to adopt the Resolution. On a voice vote the motion passed 6-0. Vice Mayor Biederman was absent.

15. [R-2015-242](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Amending The Central Services Fund (Fund 57) For The Fiscal Year 2015 Adopted Budget (R-2014-282), As Amended, Revising Operating Revenues, Authorizing Budgetary Adjustments And Expenditures; Authorizing The Department Of Financial Services To Establish Line Item Accounts As May Be Needed; And Providing An Effective Date.

Vice Mayor Biederman returned to the meeting at 1:56 PM.

Discussion ensued among members of the Commission.

Matthew Lalla, Director of Financial Services, responded to questions raised by the Commission.

ACTION: Motion was made by Commissioner Hernandez, which was seconded by Commissioner Asseff, to continue the Resolution to the September 2, 2015 Regular Commission Meeting. On a voice vote the motion passed unanimously. (7-0)

16. [R-2015-243](#)

A Resolution Of The City Commission of the City of Hollywood, Florida, Amending the Capital Improvement Projects Budget for the Fiscal Year 2015 Adopted Budget (R-2014-282), to Revise Revenues and Authorize Budgetary Transfers as Set Forth in Exhibit 1 and 2, Authorizing the Establishment of Necessary Accounts, the Transfer of Funds and Other Necessary Account Adjustments, and Providing an Effective Date.

Discussion ensued among members of the Commission.

Matthew Lalla, Director of Financial Services, responded to questions raised by the Commission.

ACTION: Motion was made by Commissioner Hernandez, which was seconded by Commissioner Sherwood, to adopt the Resolution. On a voice vote the motion passed unanimously. (7-0)

26. [R-2015-253](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Issue The Attached Blanket Purchase Order Renewing The Agreement Between Air Centers Of Florida, Inc. And The City Of Hollywood For Maintenance And Emergency Repair Services Provided On The Compressed Natural Gas (CNG) Fueling Station For An Estimated Annual Amount Of \$85,000.00.

Discussion ensued among members of the Commission.

ACTION: Motion was made by Commissioner Asseff, which was seconded by Vice Mayor Biederman, to adopt the Resolution. On a voice vote the motion passed unanimously. (7-0)

37. [PO-2015-17](#)

An Ordinance Of The City Of Hollywood, Florida, Considering The Request For An Amendment To The Seaside Village Master Development Plan (Previously Approved By Ordinance No. O-2014-08) To Change The Two Multi-Family Buildings On The East Side Of North Ocean Drive To Eight (8) Single Family Homes And Changing The Building Footprint And Setbacks; And Providing An Effective Date. (13-DJPVZ-100a)

Jeffrey P. Sheffel, City Attorney, explained the quasi-judicial procedures for items 37-41. Mayor Bober questioned if there was any objection to waiving the quasi-judicial procedures. Being there was no objection, the quasi-judicial procedures were waived.

The Mayor announced the ordinance was advertised in conformance with Florida Statutes and City Codes. The public hearing was opened; there being no one present who wished to speak, the public hearing was declared closed.

Commissioner Sherwood left the meeting at 2:07 PM and returned at 2:08 PM.

The City Clerk read the ordinance title on second and final reading.

ACTION: Motion was made by Commissioner Asseff, which was seconded by Mayor Bober, to adopt on second and final reading the Ordinance. The motion on roll call vote carried:

Aye: Commissioner Asseff
Commissioner Hernandez
Commissioner Callari
Commissioner Blattner
Vice Mayor Biederman
Commissioner Sherwood
Mayor Bober

38. [R-2015-259](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Considering The Request For Approval Of An Amendment To The Design And Site Plan For The "Seaside Village" Project, To Change The Two Multi-Family Buildings On The East Side Of North Ocean Drive To Eight (8) Single Family Homes And Changing The Building Footprint And Setbacks, As Well As Modifications To The Drive-Aisle Requirements (Previously Approved By Resolution No. R-2014-121), Located At 6024 N. Ocean Drive; And Providing An Effective Date.

ACTION: Motion was made by Commissioner Asseff, which was seconded by Commissioner Sherwood, to adopt the Resolution. On a voice vote the motion passed unanimously. (7-0)

39. [PO-2015-18](#)

An Ordinance Of The City Of Hollywood, Florida, Approving An Amendment To The Current Costa Hollywood Planned Development Master Plan (Originally Approved By Ordinance O-2004-23, And Amended By Ordinances O-2006-38 And O-2013-07); Allocating Three (3) Additional Bonus Hotel Density Condo-Hotel Rooms From The "Central Beach Hotel Room Pool" For A Total Of 143 Bonus Hotel Density Condo-Hotel Rooms Pursuant To The City's Comprehensive Plan; And Releasing The Declaration Of Restrictions Recorded In Official Records Book 50902 At Pages 1569-173 Of The Public Records Of Broward County, Florida. (12-D-17b)

The Mayor announced the ordinance was advertised in conformance with Florida Statutes and City Codes. The public hearing was opened; there being no one present who wished to speak, the public hearing was declared closed.

The City Clerk read the ordinance title on second and final reading.

ACTION: Motion was made by Commissioner Asseff, which was seconded by Commissioner Sherwood, to adopt on second and final reading the Ordinance. The motion on roll call vote carried:

Aye: Commissioner Asseff
Commissioner Hernandez
Commissioner Callari
Commissioner Blattner
Vice Mayor Biederman
Commissioner Sherwood
Mayor Bober

40. [R-2015-260](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Considering A Request For Approval Of An Amendment To The "Costa Hollywood" Site Plan (Previously Approved By Resolution No. R-2013-058), Located At 777 North Ocean Drive To Increase The Number Of Condo-Hotel Rooms From 304 To 307; And Providing An Effective Date.

ACTION: Motion was made by Commissioner Asseff, which was seconded by Commissioner Sherwood, to adopt the Resolution. On a voice vote the motion passed unanimously. (7-0)

41. [PO-2015-19](#)

An Ordinance Of The City Of Hollywood, Florida, Amending Section 1. Of Ordinance No. O-2015-02 To Extend The 120 Day Site Plan Submission Date Time Frame For The Parc View Apartments Project; And Providing For An Effective Date.

The City Clerk read the ordinance title on first reading.

ACTION: Motion was made by Commissioner Asseff, which was seconded by Commissioner Sherwood, to adopt on first reading the Ordinance. The motion on roll call vote carried:

Aye: Commissioner Asseff
Commissioner Hernandez
Commissioner Callari
Commissioner Blattner
Vice Mayor Biederman
Commissioner Sherwood
Mayor Bober

44. [PO-2015-21](#)

An Ordinance Of The City Of Hollywood, Florida, Approving An Amendment To The Current Ocean Palms Condominium Planned Development Master Plan (Originally Approved by Ordinance O-2002-37). (13-DJPV-44)

The City Attorney explained waiving the quasi-judicial procedures and Mayor Bober questioned if there were any objections to waiving them. There were no objections, and the quasi-judicial procedures were waived.

The City Clerk read the ordinance title on first reading.

ACTION: Motion was made by Commissioner Asseff, which was seconded by Commissioner Callari, to adopt on first reading the Ordinance. The motion on roll call vote carried:

Aye: Commissioner Asseff
Commissioner Hernandez
Commissioner Callari
Commissioner Blattner
Vice Mayor Biederman
Commissioner Sherwood
Mayor Bober

45. [R-2015-262](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Appointing One (1) Member To The Education Advisory Committee.

The following individuals expressed personal opinions/concerns:

1. Mari Gray Khoury, 1400 Sheridan Street
2. Jasmine Forrester, 2220 N 38 Avenue

ACTION: Motion was made by Commissioner Callari, which was seconded by Commissioner Hernandez, to adopt the Resolution with an amendment to increase the numbers of positions on the board by one and appoint Mari Gray Khoury and Jasmine Forrester. On a voice vote the motion passed unanimously. (7-0)

47. Commissioner Blattner, District 4

Sheridan Shopping Center

Commissioner Blattner stated there is a safety issue with motorists turning left out of the Publix shopping center on Sheridan Street and Federal Highway. Fourteen accidents have occurred with vehicles turning left and he recommended that it should be changed to a right turn only. Commissioner Asseff, Mayor Bober and Commissioner Hernandez supported the request.

Convenience Stores

Commissioner Blattner requested support for a mandatory distance separation between convenience stores and gas stations with convenience stores. There were no members of the Commission who were in support.

48. Vice Mayor Biederman, District 5

Red Light Camera Program

Vice Mayor Biederman requested a status update on the red light

camera program.

Commission Meeting Agenda

Vice Mayor Biederman requested support of the Commission on whether they would consider moving the Commission Comments from the middle of the meeting to the end in order for members of the Commission to respond to Citizen Comments. Commissioner Hernandez and Commissioner Blattner supported the request.

ACTION: Motion was made by Vice Mayor Biederman, which was seconded by Commissioner Hernandez, to amend the Resolution on the Commission Rules of Procedures to move Commission Comments' to the end of the meeting.

Mayor Bober, Commissioner Asseff, Commissioner Callari and Commissioner Sherwood were in agreement.

Discussion ensued among members of the Commission regarding Commission Comments.

Jeffrey P. Sheffel, City Attorney, explained there can be an informal procedure or a formal procedure can be drafted into the Commission Procedures.

It was the consensus of the Commission to have the Mayor, based on the circumstance of the day, ask the Commission after all business has been completed, but before any late time certain items, if the Commission wishes to do Commission Comments at that time.

ACTION: Vice Mayor Biederman withdrew his motion to amend the Resolution on Commission Rules of Procedures.

Help Me Hollywood

Vice Mayor Biederman recognized Ken Crawford as the number one user in the City of the Help Me Hollywood program. Kirk Sheridan and Mitchell Sabanosh who reside in District 5 are frequent users of the program as well.

Home of the Quarter

Vice Mayor Biederman recognized District 5 residents for participating in Home of the Quarter. Joel Castillo, N. 70th Avenue, was chosen as the third quarter recipient.

49. Commissioner Sherwood, District 6

Florida League of Cities Conference

Commissioner Sherwood stated the Florida League of Cities Conference she attended in July, 2015 was excellent. She was impressed with the classes on economic development. She explained that in order to maintain a millage rate that residents can afford it is important that the City attracts the type of desirable industries which will spread out the tax base.

Red Light Camera Program

Commissioner Sherwood stated residents had a misunderstanding of what transpired with the red light program vote which resulted in members of the Commission receiving very negative e-mails. She explained the vote taken by the Commission on the red light contract at the last Commission meeting on July 8, 2015. The contract stipulated cancellation required a 60 day notice and a penalty of \$50,000.00. Members of the Commission decided they were willing to review a new proposal whereby the contractor would offer to waive the \$50,000.00 penalty.

Code Enforcement Volunteers

Commissioner Sherwood suggested that the City consider re-instituting the Code Enforcement volunteers program.

Summer Break

Commissioner Sherwood stated she hoped everyone had a nice summer.

FY2016 Budget Workshop

Commissioner Sherwood invited everyone to attend the FY2016 Budget Workshop tomorrow in order to observe how members of the Commission work towards a cost effective budget for residents.

42. [P-2015-048](#)

Presentation By Raelin Storey, Director of Public Affairs, On The City of Hollywood's 2015 Photo Contest.

Raelin Storey, Director of Public Affairs and Marketing, provided a presentation on the Photo Contest and presented awards to the various winners.

50. **Commissioner Asseff, District 1**

Summer Break

Commissioner Asseff stated she hoped everyone had a great summer.

Florida League of Cities Conference

Commissioner Asseff stated it was great to have Commissioner Callari, Commissioner Hernandez and Commissioner Sherwood

attend the Florida League of Cities convention with her.

Economic Development

Commissioner Asseff explained that a recent article in the Sun-Sentinel Money Section highlighted an importer and exporter of bananas who has opened offices in Dania Beach at the Design Center. She suggested that Hollywood start to take note of the great businesses that are coming to the City, one of which is an import and export olive oil company located at 1915 Hollywood Boulevard. She suggested that staff explore opportunities for fresh produce companies to establish their businesses in the City.

51. Commissioner Hernandez, District 2

Florida League of Cities Conference

Commissioner Hernandez explained the great experience he had at the Florida League of Cities conference. The most significant aspect of the Conference for him was what he learned about the Millennial Generation and how to get them involved in government. He suggested the City establish a board to engage youth and incorporate technology into the Commission meetings in order to learn what millennials opinions are on agenda items.

Commissioner Blattner left the meeting at 2:51 PM and returned at 2:53 PM.

Regional Activities Center (RAC)

Commissioner Hernandez stated residents in a portion of District 2 are not happy about the RAC due to their fear of what the change involves and how it will affect them. They are under the impression that it is a zoning change rather than a land use designation for the area to attract new businesses. He requested that staff communicate more with the residents and educate them on the change and how it will affect them.

City of Dania Beach

Commissioner Hernandez announced that he has been in communication with Mayor Marco Salvino, Sr., from the City of Dania Beach, and other Dania Beach elected officials. They have expressed interest in partnering with the City on enhancements to N. 22nd Avenue for lighting and to improve pedestrian walkways with bricks and landscaping. Commissioner Hernandez stated he would like to meet with them to discuss these issues and holiday lighting for the Sheridan Street and Stirling Road corridors.

Back-Flow Preventers

Commissioner Hernandez announced he has received several calls in regard to the businesses that have not complied with back flow preventers. He requested a meeting with staff to discuss this issue. The conversion would reduce meter inspections and the inspection fees for those establishments that currently have multiple meters. He gave the example of Sonny's Sandwich Shop which has 13 meters. The area of concern is N. 66th Avenue between Taft Street and Sheridan Street.

School Traffic

Commissioner Hernandez stated the heavy vehicle traffic from the Hollywood Academy of Arts and Sciences located on Young Circle has caused a huge problem that negatively impacts the residents in the surrounding neighborhood which results in their immobility for 2 hours in the morning and 2 hours in the afternoon.

52. Commissioner Callari, District 3

Virginia Shooting

Commissioner Callari spoke about the fatal shootings of the two Virginia journalists on live TV this morning and expressed her condolences.

COSAC Demolition

Commissioner Callari announced that the COSAC Foundation demolition has started and she is looking forward to a new beginning for Federal Highway development.

Florida Department of Transportation (FDOT)

Commissioner Callari thanked staff for working with FDOT to have landscaping planted on the northbound and southbound ramps at I-95 and Hollywood Blvd.

Commissioner Callari stated FDOT is working on the medians in the City and requested that collaboration with the City continue, particularly on N. 40th Avenue and Taft Street.

Fort Lauderdale-Hollywood International Airport

Commissioner Callari stated the Fort Lauderdale-Hollywood International Airport exit ramp is improving, however it is still in need of signage.

WastePro

Commissioner Callari stated the issues regarding bulk and trash pickup by WastePro continue which she and Sylvia Glazer, Director of Public Works, have been working on to resolve.

COSTA Hollywood

Commissioner Callari requested an update on the status of the COSTA construction.

Police Presence

Commissioner Callari thanked the Police Officers for their presence in school zones.

Gino's Italian-American Deli Event

Commissioner Callari thanked Gino's Italian-American Deli for their Perfect Wine and Liquor event and the school scholarship donation. She stated it is a prime example of how businesses are assisting our community and that the scholarship will benefit many students.

Florida League of Cities Conference

Commissioner Callari stated that her primary interest is in youth and elders. She attended one of the Florida League of Cities presentations in which youth were in attendance. She would like to participate more with high school students to encourage them to be engaged with City government and their communities. She suggested extending invitations to students to attend Commission meetings in order for them to experience what leadership entails.

Historical Society

Commissioner Callari announced she attended a presentation by students at the Historical Society of Hollywood located on Polk Street. The theme of the presentation was a historical view of the City from when it was initially founded by Joseph W. Young.

Roadway Improvements

Commissioner Callari stated the roadway improvements continue particularly on Park Road. She thanked the Department of Public Works staff and all involved for their work on this project.

Dog Park at Stan Goldman Park

Commissioner Callari announced the Dog Park at Stan Goldman Park grand opening on Saturday, August 29, 2015 from 9:00 AM to 12:00 PM. Stan Goldman Park is located at 800 Knights Road.

Storm Preparations

Commissioner Callari reminded everyone to be prepared for the potential Tropical Storm Erika which may develop into Hurricane Erika.

City Trees

Commissioner Callari requested that planting trees throughout the City

which Mayor Bober initiated will continue once he leaves office at the end of his tenure since he will not be running for office again. She suggested that a tree be named in his honor.

53. Mayor Bober

Mayor Bober had no further comments.

47. Commissioner Blattner, District 4

City of Dania Beach

Commissioner Blattner stated he is in agreement with Commission Hernandez in regard to having City staff work with the City of Dania Beach on improvements to N. 22nd Avenue.

54. City Attorney

Executive Session

Jeffrey P. Sheffel, City Attorney, announced pursuant to Florida Statutes 286.011 (8)(a), an executive session will be held on September 8, 2015 at 1:00 PM regarding Timothy Klingerman vs. City of Hollywood litigation. Attending the session will be the Mayor, Commissioners, City Manager, City Attorney and outside counsel, Kelly Rains-Jesson.

55. City Manager

Storm Preparations

Dr. Wazir Ishmael, City Manager, reminded everyone to take the necessary precautions for Tropical Storm Erika which may develop into a hurricane potentially affecting South Florida. Staff has begun the preparations for the City. He announced that 2400 sand bags will be available for Hollywood residents at the Department of Public Works located at 1600 S. Park Road on Friday, August 28, 2015 from 1:00 PM to 6:00 PM and Saturday, August 29, 2015 from 8:00 AM to 2:00 PM.

Economic Development

Dr. Wazir Ishmael, City Manager, stated the economic development of the City is progressing in a positive direction. He announced a company that is moving to the City will hire 20 highly skilled employees earning an average of \$50,000.00 per year and an anticipated capital investment of \$2.25 million.

Summer Camps

Dr. Wazir Ishmael, City Manager, announced that the Department of Parks, Recreation and Cultural Arts had record attendance in the summer camps. The Children's Service Council has renewed its funding for the City summer camps in FY2015-2016 which will be a minimum of \$489,000.00.

Shredding and Clothing Donation Event

Dr. Wazir Ishmael, City Manager, announced there will be a shredding and clothing donation event on Saturday, August 29, 2015 beginning at 8:00 AM. The location will be Boulevard Heights Community Center at 6770 Garfield Street. The Salvation Army will be present to accept donations of small household items and clothing.

Sunshine State Academy

Dr. Wazir Ishmael, City Manager, explained the Sunshine State Academy is planning a back-to-school rally for students requiring 80 percent approval from neighboring residents for a 500 foot radius permit since the event will be outside. Chuck Ellis, Director of Parks, Recreation and Cultural Arts, explained that it has been difficult to reach condominium residents in the area due to their absence for summer vacations.

Commissioner Hernandez stated the Sunshine State Academy staff has kept him informed of the event planning and he recommends that members of the Commission approve the permit which he supports.

ACTION: Motion was made by Commissioner Asseff, which was seconded by Commissioner Sherwood, to grant permission for Sunshine State Academy to have their event. On a voice vote the motion passed unanimously (7-0).

Sand Bags

Commissioner Asseff requested that the City Manager have sand bags available for residents on the east side of Federal Highway, possibly at the Fire Station in preparation for impending Tropical Storm Erika.

Commission in the Community

Commissioner Asseff announced the next Commission in the Community meeting will be held on September 9, 2015 at the Hollywood Beach Community Center located at 1301 S. Ocean Drive.

43. [R-2015-261](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Considering A Commission Request For Review Of Special Exception, Sign Variances, Design And Site Plan, To Establish A Service Station Including An Approximate 6,000 Square Foot Convenience Store Located At 101 South State Road 7 (The Place at

Hollywood-RaceTrac), Pursuant To The Provisions Of The City Of Hollywood Zoning And Land Development Regulations. (14-CRR-91)

Jeffrey P. Sheffel, City Attorney, explained the quasi-judicial procedures. Mayor Bober questioned if there was any objection to waiving the quasi-judicial procedures. Being there was an objection the quasi-judicial procedures were not waived. The City Clerk swore in those persons who would speak and provide testimony.

The Commission disclosed their ex-parte communications.

Arceli Redila, Associate Planner, provided a presentation on the proposed project. Staff Summary was entered as Staff Exhibit 1.

Dwayne Dickerson, Dunay, Miskel & Backman, LLP, Attorney for the Applicant, provided a presentation on the proposed project.

Drew Cunningham, RaceTrac, provided additional information on the company.

Commission discussion ensued and Dwayne Dickerson and Drew Cunningham responded to questions asked of them.

The following individuals expressed personal opinions/concerns:

1. Jean Morford, Lawn Acres Civic Association President
2. David Nash, Hollywood Gardens West
3. Anthony Enriquez, Hollywood Gardens West Civis Association
4. Cliff Germano, 1627 N 28 Court
5. Carlos Lanos, 522 S. 58 Terrace

Dwayne Dickerson, Dunay, Miskel & Backman, LLP, Attorney for the Applicant, provided closing comments.

Jeffrey P. Sheffel, City Attorney, explained the criteria for deliberation to the City Commission.

The City Commission conducted their deliberations.

Commissioner Asseff left the meeting at 5:07 PM and returned at 5:09 PM.

ACTION: Motion was made by Commissioner Hernandez, which was seconded by Commissioner Callari, to adopt the Resolution with the conditions recommended by staff. On a voice vote the motion passed 6-1. Commissioner Blattner was opposed.

53. Mayor Bober

Chuck Vollman Park

Mayor Bober requested support to name the Okomo Trailer Park after Chuck Vollman, which according to the naming procedures would come back at the next Commission meeting. Commissioner Callari supported the request.

46. CITIZENS' COMMENTS

Commissioner Hernandez, Commissioner Sherwood, Vice Mayor Biederman and Commissioner Callari left the meeting at 5:11 PM.

1. Jeff Marano, Broward County PBA

Commissioner Callari and Vice Mayor Biederman returned to the meeting at 5:13 PM.

Commissioner Sherwood returned to the meeting at 5:14 PM.

2. Silvie Suri, 5820 Polk Street

3. Nancy Fowler, 2616 Coolidge Street

4. Freida Dragif, 2455 Hollywood Blvd.

5. Frank Derisi, 3505 S. Ocean Drive

6. Sula Miller, 1410 S. Ocean Drive

7. Kathy Debona, 1501 South Ocean Drive

8. Bob Glickman, 3111 N. Ocean Drive

9. Siobham McLaughlin, 1409 Rodman Street

10. Elizabeth SanJuan, 2014 Harrison Street

11. Saint James, Taft and US1

12. Benjamin Israel, African Diaspora Think Tank

56. The meeting adjourned at 5:44 PM.

Patricia A. Cerny, MMC
City Clerk
Hollywood, Florida

Approved on:
